

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Ja'Quawn Turner	Team: Squad #04	CCRB Case #: 202407921	☒ Force ☐ Discourt. ☐ U.S. ☒ Abuse ☐ O.L. ☐ Injury
Incident Date(s) Tuesday, 10/10/2023 3:24 PM	Location of Incident: White Plains Road and Laffayette Avenue	18 Mo. SOL 4/10/2025	Precinct: 43
Date/Time CV Reported Thu, 08/08/2024 5:56 PM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Thu, 08/08/2024 5:56 PM

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. PO Joel Feliz	08876	966568	043 PCT
2. PO Enmanuel Diazsantana	11556	965047	043 DET
3. PO Javiel Flores	06670	963519	043 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. PO Elijah Rodrigo	11451	972213	043 PCT
2. PO Kenny Acosta	03810	960128	043 PCT

Officer(s)	Allegation	Inv. Div. Recommendation
A . PO Javiel Flores	Force: Police Officer Javiel Flores used physical force against § 87(2)(b)	A . Substantiated
B . PO Joel Feliz	Force: Police Officer Joel Feliz used physical force against § 87(2)(b)	B . Substantiated
C . PO Joel Feliz	Force: Police Officer Joel Feliz used physical force against § 87(2)(b)	C . Substantiated
D . PO Javiel Flores	Force: Police Officer Javiel Flores used physical force against § 87(2)(b)	D . Substantiated
E . PO Enmanuel Diazsantana	Force: Police Officer Enmanuel Diazsantana used a non-lethal restraining device on § 87(2)(b)	E . Substantiated
F . PO Enmanuel Diazsantana	Abuse: Police Officer Enmanuel Diazsantana failed to activate his body-worn camera.	F . Substantiated

Case Summary

On August 8, 2024, § 87(2)(b) reported this incident over the phone to the undersigned investigator while providing a statement for a separate CCRB complaint.

On October 10, 2023, at approximately 3:24PM, § 87(2)(b) was riding an electric scooter in the vicinity of White Plains Road and Lafayette Avenue in the Bronx. Multiple officers from the 43rd Precinct, including PO Javiel Flores, PO Joel Feliz, and PO Enmanuel Diazsantana chased § 87(2)(b) on foot. PO Flores punched § 87(2)(b) in the face (**Allegation A: Force, substantiated**). PO Feliz punched § 87(2)(b) in the face (**Allegation B: Force, substantiated**). PO Flores kicked § 87(2)(b) while he was on the ground (**Allegation C: Force, substantiated**). PO Feliz pulled § 87(2)(b) dreadlocks and continued to punch § 87(2)(b) (**Allegation D: Force, substantiated**). PO Diazsantana tased § 87(2)(b) (**Allegation E: Force, substantiated**). PO Diazsantana failed to activate his BWC (**Allegation F: Abuse of Authority, substantiated**).

§ 87(2)(b) was arrested and charged with assault against a police officer, resisting arrest, inciting a riot, obstruction of governmental administration, and disorderly conduct (**BR1**).

There were 20 BWC videos related to this incident (**BR2**).

Note: § 87(2)(b) filed this complaint approximately 10 months after the incident date due to pending litigation on a criminal case stemming from the above-mentioned arrest. Officer interviews were completed on February 25, 2025.

Findings and Recommendations

Allegation (A) Force: Police Officer Javiel Flores used physical force against § 87(2)(b)

Allegation (B) Force: Police Officer Joel Feliz used physical force against § 87(2)(b)

Allegation (C) Force: Police Officer Joel Feliz used physical force against § 87(2)(b)

Allegation (D) Force: Police Officer Javiel Flores used physical force against § 87(2)(b)

§ 87(2)(b) stated that on October 10, 2023, at approximately 3:24pm, § 87(2)(b) on his way to pick up his brother from school. § 87(2)(b) rode a Lime electric scooter down White Plains Road in the middle lane because the road was “messed up,” and to his right was a bus lane. A marked car drove past § 87(2)(b) and got very close to § 87(2)(b). § 87(2)(b) approached the unidentified officers inside the marked car and told the officers to learn how to drive. The officers asked § 87(2)(b) why he was in the area. § 87(2)(b) told the officers to “suck my dick,” and rode his scooter across the intersection in front of § 87(2)(b) to get his brother. § 87(2)(b) heard an officer say, “get him.” § 87(2)(b) then got off his scooter and ran across the street. § 87(2)(b) got down in between parked cars and sat in a fetal position with his arms covering his head and his head tucked into his lap. A group of approximately 15 officers caught up to § 87(2)(b) and punched and kicked § 87(2)(b). Officers punched § 87(2)(b) face, head, side, and shoulders repeatedly. Officers also pulled § 87(2)(b) dreadlocks though he could not identify which officers did this action (**BR3**).

PO Flores stated that he was directing routine patrol for school dismissal at § 87(2)(b) High School. This area is known for school fights and slashing. While on patrol, PO Flores heard a call over the area of a “34 in progress,” which is a fight in the area. PO Flores approached the area and saw about 80 kids, between the ages of 14 and 16, at the location and in the middle of the street, which is not a normal occurrence. The kids were all “highly” aggressive, agitated, and animated as if they

had just watched a fight or were getting ready to fight. As PO Flores exited his vehicle, a black male with shoulder-length dread locks, who was identified as § 87(2)(b) rode past PO Flores on a scooter. § 87(2)(b) drove down White Plains Road in the middle of the street and said, “suck my dick, fuck you,” to PO Flores and the other officers present. Multiple officers told § 87(2)(b) to leave the area. PO Flores also told § 87(2)(b) to leave while PO Flores was attempting to disperse the crowd. § 87(2)(b) did not comply and instead continued to drive through and weaving in and around traffic causing hazardous conditions. § 87(2)(b) also incited the crowd yelling, “fuck the police.” § 87(2)(b) was placing himself and others in danger due to his actions. Another fight broke out and PO Flores and his partner DTS Luna ran over and arrested a female juvenile (BR4).

PO Flores then heard Sgt. Black yelling, “Grab him! Arrest him!” and pointed toward § 87(2)(b). PO Flores observed § 87(2)(b) on the upper end of the intersection running down the street in his direction. § 87(2)(b) jumped off his scooter and “shoulder checked,” a sergeant. § 87(2)(b) also evaded PO Feliz by performing a “parkour slide,” jump over the back of a vehicle in traffic. In the process, § 87(2)(b) struck PO Feliz in the face. PO Feliz then tackled § 87(2)(b) on top of a car. PO Flores was directly behind PO Feliz and witnessed § 87(2)(b) strike PO Feliz in the face a second time with a closed hand while flailing and kicking his feet toward the officers. In response to observing this, PO Flores threw no more than two closed fist strikes toward § 87(2)(b) midsection; however, PO Flores could not identify exactly where his strikes landed. Simultaneously, PO Feliz and PO Flores attempted to place § 87(2)(b) in handcuffs. § 87(2)(b) kicked PO Feliz while § 87(2)(b) was resisting. PO Flores did not remember kicking § 87(2)(b) actively resisted by flailing his arms, kicking his feet, and clenching his hands and arms around his head. § 87(2)(b) was taken to the ground, and § 87(2)(b) clamped his arms around his head, not allowing officers to place him in handcuffs (BR4).

PO Feliz’s statement was similar to PO Flores’ statement with exceptions noted below. As § 87(2)(b) attempted to evade police by trying to jump over the rear of a nearby car, PO Feliz took action to apprehend § 87(2)(b) by tackling § 87(2)(b). PO Feliz and § 87(2)(b) then scuffled and rolled onto the hood of the car. PO Feliz attempted to turn § 87(2)(b) body around to handcuff him. PO Feliz could not recall if § 87(2)(b) was facing PO Feliz or facing away from him as he turned § 87(2)(b) body. PO Feliz then felt a “flash” on the right side of his face. This “flash” was the moment he was struck, though he did not know if he was punched or slapped. PO Feliz did not see who hit him or how he was hit. PO Feliz did not recall if he and § 87(2)(b) were standing when this strike occurred. PO Feliz went into fight-or-flight mode and started striking § 87(2)(b) whom he assumed was responsible for striking PO Feliz. It was possible that the strike he felt was not from § 87(2)(b). However, PO Feliz felt that he needed to protect himself and therefore threw close-handed strikes at § 87(2)(b) head and forearms as § 87(2)(b) slid off the hood of the car and onto the ground with his hands covering his face and head area. PO Feliz did not recall how many punches he threw at § 87(2)(b) but, once he noticed other officers assisting in trying to handcuff § 87(2)(b) another officer pulled PO Feliz away. PO Feliz denied pulling § 87(2)(b) dreadlocks (BR5).

According to PO (now Sgt.) Carrasquillo’s BWC, the 2:19-time stamp shows § 87(2)(b) running up the street. Multiple officers including PO Feliz and PO Flores run towards § 87(2)(b). PO Feliz runs toward § 87(2)(b) left side to cut him off. § 87(2)(b) further moves left to avoid PO Feliz by hopping over the back of a nearby car. PO Flores follows behind them. As he is in the air, PO Feliz contacts § 87(2)(b) body, grabbing § 87(2)(b) and pushing § 87(2)(b) back towards the hood of a nearby parked car. The 2:21-time stamp shows PO Feliz on top of § 87(2)(b). At the 2:23-time stamp, Sgt. Carrasquillo and PO Flores reach

PO Feliz and § 87(2)(b) At the 2:24-time stamp, PO Flores is seen throwing a closed-fist strike at § 87(2)(b) face. At the 2:25-time stamp, PO Feliz also throws another closed-fist strike toward § 87(2)(b) face. PO Flores throws a second punch at § 87(2)(b) in his upper chest and face area. PO Feliz is seen throwing two more strikes as § 87(2)(b) slides from the hood of the car on to the floor. At the 2:27-time stamp, PO Flores is seen throwing small kicks toward § 87(2)(b) as he is on the ground. The strikes land on his arm and leg area (BR6).

According to PO Feliz's BWC, the 2:00-time stamp shows § 87(2)(b) jumping over the back of a vehicle in traffic. As § 87(2)(b) jumps over, his arm is seen stretched out toward PO Feliz's face. At the 2:07 time stamp, PO Feliz's left hand has a fist full grab of § 87(2)(b) hair (BR7).

According to Patrol Guide Procedure 221-01 "*Force may be used when it is reasonable to ensure the safety of the members of service or a third person, or otherwise protect life, or when reasonable to place a person in custody or to prevent escape from custody. In all circumstances, any application or use of force must be reasonable under the circumstances.*" (BR8)

It is undisputed that § 87(2)(b) ran from the police. § 87(2)(b) stated that he ducked down near a parked car; BWC footage shows that § 87(2)(b) and PO Feliz landed on the hood of a parked car, § 87(2)(g)

§ 87(2)(b) BWC footage shows that PO Flores and PO Feliz immediately resorted to punching § 87(2)(b) face and head area and did not make any attempts to place § 87(2)(b) hands behind his back to handcuff him nor issued § 87(2)(b) any commands to surrender. During the punches, § 87(2)(b) is seen with his back on the hood of the parked car and his arms being stretched out by additional officers. § 87(2)(b) is then seen sliding his body to the ground while covering his head with his arms, seemingly after being tased (addressed below in Allegation E).

Although additional officers are present, PO Feliz and PO Flores continue to punch § 87(2)(b) Additionally, PO Flores is seen kicking his foot towards § 87(2)(b) and PO Feliz is seen grabbing/pulling § 87(2)(b) dreadlocks. Following these actions, PO Feliz and PO Flores step away and additional officers handcuff § 87(2)(b) § 87(2)(g)

§ 87(2)(b) BWC shows that § 87(2)(b) did not punch or fight the officers while they were punching § 87(2)(b) § 87(2)(g)

§ 87(2)(b) it is recommended that Allegations A-D be substantiated.

Allegation (E) Force: Police Officer Enmanuel Diazsantana used a non-lethal restraining device on § 87(2)(b)

§ 87(2)(b) stated that, during the physical struggle, an officer tased § 87(2)(b) once (BR3).

§ 87(2)(b) sent a photo showing the markings left of the prongs that entered the side of his body (BR9).

Sgt. Carrasquillo's BWC starting from the 02:21 time stamp, PO Diazsantana is seen running

toward the scene with PO Feliz and PO Flores. PO Diazsantana's taser is already unholstered. At the 2:23-time stamp Sgt. Carrasquillo and PO Diazsantana reach § 87(2)(b) at the same time. PO Diazsantana pulls the Taser trigger about 6 inches away from the lower left front side of § 87(2)(b). The cartridge protrudes out of the taser and releases the taser for one cycle, which is approximately 5 seconds long (BR6).

PO Diazsantana stated that he heard officers yelling to grab and handcuff § 87(2)(b) as § 87(2)(b) was running away. PO Diazsantana approached § 87(2)(b) and the officers. PO Diazsantana saw officers using their hands. PO Diazsantana decided to use what he felt was the minimum amount of force by unholstering his taser and releasing a close-range prong cycle so that he did not put any of his fellow officers in danger. The prongs shot into § 87(2)(b) left side toward his hip. PO Diazsantana released the prongs at close range and lasted approximately 5 seconds. After the cycle was complete, PO Diazsantana re-holstered his taser and did not take any additional police action (BR10).

According to Patrol Guide Procedure 221-08, “A CEW should only be used against persons who are actively resist, exhibiting active aggression, or to prevent individuals from physically injuring themselves or other person(s) actually present. It will often reduce the potential for injuries to members and suspects that may result from physical restraint and should be regarded as a possible alternative to such force and restraint, where practical. It is prohibited to use a CEW in situations that do not require the use of physical force. ACTIVE RESISTING - Includes physically evasive movements to defeat a member of the service's attempt at control, including bracing, tensing, pushing, or verbally signaling an intention to avoid or prevent being taken into or retained in custody. ACTIVE AGGRESSION - Threat or overtly act of an assault (through physical or verbal means), coupled with the present ability to carry out the threat or assault” (BR11).

§ 87(2)(g)
§ 87(2)(g)
§ 87(2)(g) BWC video shows that PO Diazsantana ran towards § 87(2)(b) with his Taser in his hands. § 87(2)(b) is seen on top of the hood of the car with officers surrounding § 87(2)(b) holding his arms, and punching him. PO Diazsantana immediately approaches and releases one Taser cycle without warning. § 87(2)(g)
§ 87(2)(g)
§ 87(2)(g)
§ 87(2)(g) it is recommended that Allegation E be closed as **substantiated**.

Allegation (F) Abuse of Authority: Police Officer Enmanuel Diazsantana failed to activate his body-worn camera.

PO Diazsantana's BWC starts and ends before the incident with § 87(2)(b) occurs. PO Diazsantana does not turn his BWC back on during or after the incident (BR12).

PO Diazsantana admitted that his BWC was not active the entire time of the incident. PO Diazsantana explained that he believed the situation was over and he was walking toward his car when the situation unfolded. The incident with § 87(2)(b) happened so fast that he did not have an opportunity to turn his BWC back on. PO Diazsantana did not feel the need to turn his BWC back on after § 87(2)(b) was handcuffed because he was not engaged in any police actions (BR11).

According to Patrol Guide Procedure 212-123, officers must “Activate BWC prior to engaging in

any police action. Record any interaction that escalates to become adversarial or may hold evidentiary value. Activate BWC as soon as it is feasible and safe to do so after taking necessary action to preserve human health and safety, when an unanticipated or exigent occurrence takes place.” (BR13)

§ 87(2)(g) [REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED] it is recommended that Allegation F be closed as **substantiated**.

Civilian and Officer CCRB Histories

- § 87(2)(b) [REDACTED]
[REDACTED]
 - [REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
 - [REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
- PO Enmanuel Diazsantana has been a member of service for seven years and has been a subject in six CCRB complaints and 18 allegations, of which one was substantiated (BR15):
 - 202101806 involved substantiated allegations of Abuse of Authority: Failure to provide RTFA card against PO Diazsantana. The Board recommended Formalized training, and the NYPD imposed Formalized training.
- PO Javiel Flores has been a member of service for seven years and has been a subject in 12 CCRB complaints and 33 allegations, of which one was substantiated (BR16):
 - 202303642 involved substantiated allegations of Abuse of Authority: Failure to provide RTKA cards against PO Flores. The Board recommended Command Discipline, and the NYPD imposed No Disciplinary Action.
- PO Joel Feliz has been a member of service for six years and has been subject in five CCRB complaints and 15 complaints, of which one was substantiated (BR17):
 - 202208740 involved substantiated allegations of Abuse of Authority: Frisk against PO Feliz. The Board recommended Command Discipline, and the NYPD imposed No Disciplinary Action.

Mediation, Civil, and Criminal Histories

- This complaint was not suitable for mediation.
- § 87(2)(b) [REDACTED] filed a Notice of Claim with the City of New York claiming false arrest, false imprisonment, civil rights violations, assault, battery, abuse of process, negligence, negligent hiring, negligent supervision, use of excessive force and malicious prosecution and

§ 87(2)(b)

- § 87(2)(b) § 86(1)(3)&(4) § 87(2)(c)

RPBP History

- The RBPB Unit reviewed this complaint and ultimately decided it did not contain actionable allegations of Racial Profiling or Bias-Based Policing.

Squad No.: 4

Investigator:	Inv. JaQuawn Turner	Inv. JaQuawn Turner	03/06/2025
	Signature	Print Title & Name	Date

Squad Leader: <u>Raquel Velasquez</u>	<u>IM Raquel Velasquez</u>	<u>03/06/2025</u>
Signature	Print Title & Name	Date

Reviewer: _____

_____ Signature	_____ Print Title & Name	_____ Date
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